

FORM 70 O
REQUISITION TO NOTE DEFAULT
AND NOTICE OF MOTION FOR JUDGMENT

Supreme Court of Prince Edward Island
(Family Section)

Court File No.:

Applicant/Petitioner:

Respondent:

REQUISITION

TO THE REGISTRAR

I require you to note the respondent _____ in default in this action on the
(name)
ground that he or she has not filed an answer within the prescribed time. The petition has been
filed with proof of service.

NOTICE OF MOTION

The petitioner makes this motion to a Judge of the Supreme Court - Family Section.

The motion is for default judgment in accordance with the petition.

The grounds for the motion are that the respondent has not filed an answer and has been noted in
default.

The following documentary evidence will be relied on:

1. the petition
2. the certificate of marriage, or equivalent thereof from another jurisdiction, filed in this
action
3. the affidavit of the petitioner dated.

*(Where applicable add: The petitioner intends to present oral evidence at the hearing of the
motion.)*

(Date)

Name: _____

Address: _____

Phone: _____

(Name, address and telephone number of petitioner's lawyer or
petitioner)